AREA Alberta Real Estate Association

_____
Agreement Number

CUSTOMER ACKNOWLEDGEMENT

(For Use in Common Law and Designated Agency Brokerages)

Between

THE BROKERAGE (WE)	and	THE SELLER (YOU)	OR	THE BUYER (YOU)
_____		_____		_____
_____		_____		_____

1. THE PROPERTY

1.1 The land and buildings at (municipal address): _____

_____

2. OUR ROLE

2.1 You acknowledge that we will not act as your agent.

You have read and understood this acknowledgment and the Real Estate Council of Alberta's *Consumer Relationships Guide* (Guide). You have decided not to have an agent represent you. This means you will not have the advantages, protection, and services that go with agency. You understand that:

(a) we have no agency obligations to you, especially fiduciary ones. In a fiduciary relationship, you rely on someone to act in your best interests.

(b) we cannot use our judgment on your behalf, give you advice, or act in your best interests, except as hereinafter agreed.

2.2 ❑ We are the agent of the seller (our client) in whose property you are interested.

or

❑ We are the agent of the buyer (our client) interested in your property.

As an agent of our client, we must:

(a) be loyal to our client.

(b) act in our client's best interests.

(c) give our client all information you give to us, even if it is confidential, unless we got the confidential information from you while we were your agent.

(d) not give you information or advice that is not in our client's interests.

or

❑ We are not the agent of either the buyer or the seller and will not promote either party's interests but act only as a facilitator

3. OUR RESPONSIBILITIES

3.1 We must:

(a) act honestly.

(b) exercise reasonable care when we provide our services to you under this acknowledgment.

(c) hold money we receive in trust, as the *Real Estate Act* requires.

(d) comply with the *Real Estate Act* and its regulations and the rules and bylaws of the Real Estate Council of Alberta.

(e) give you a copy of this acknowledgment as soon as possible after signing.

4. OUR SERVICES

4.1 We may, if we choose to:

(a) give you statistics and information on property, including comparable property information from listing services or other local databases.

(b) provide agreements of purchase and sale and other relevant forms, and help you complete them.

(c) give you the names of real estate service providers. We will not recommend any specific service provider.

(d) present all offers and counter-offers to and from you, even when you have accepted another purchase contract.

(e) pass on information that you want the other party to know.

(f) keep you informed of progress.

5. NO FEES

5.1 You do not pay a fee to us for any of our services.

6. PERSONAL AND PROPERTY INFORMATION

6.1 You acknowledge we can:

(a) get information about the property from any person, corporation, government body, or municipal agency.

(b) collect, maintain, use, and disclose personal and property information you give us for uses consistent with selling the property.

(c) maintain, use and disclose this information for statistical purposes.

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MLS MULTIPLE LISTING SERVICE®

7. YOUR ACKNOWLEDGEMENT

7.1 You acknowledge that:

(a) you have read this acknowledgment.
(b) you have received and read the Guide.
(c) this acknowledgment does not make us your agent.
(d) you had the opportunity to get independent advice before signing this acknowledgment.
(e) this acknowledgment accurately sets out what we and you understand.

8. AUDIO AND VIDEO RECORDINGS AND PHOTOGRAPHY

8.1 You acknowledge that a key part of real estate transactions involves accessing and viewing properties, and this activity may include the use of photography and videography in or of the property, as well as the potential of persons who choose to view or otherwise attend the property to be captured in photos or be recorded by devices we may not know about.

8.2 You acknowledge breaches of privacy are possible when showing or viewing the property, including virtual showings using photography or videography.

8.3 You acknowledge it is unlawful to record conversations of any persons attending the property without their written consent and to have active cameras located in or on the property where privacy would be reasonably expected.

9. INDEMNIFICATION

9.1 You agree that you will indemnify us and our brokerage representatives against all claims and legal actions that may arise from any acknowledgements you make in this agreement, or because we reasonably and in good faith relied on information you gave us. This means that you will have to pay us in full for the outcome of these claims and legal actions and any related expenses including legal fees.

10. CONTACT INFORMATION

10.1 The following contact information must be used for all written communications between us and you:

SELLER/BUYER:

Name _____

Address _____ (postal code)

Phone _____ Fax _____

Email _____

Name _____

Address _____ (postal code)

Phone _____ Fax _____

Email _____

BROKERAGE:

Name _____

Address _____ (postal code)

Phone _____ Fax _____

Email _____

BROKERAGE REPRESENTATIVE:

Name _____

Address: c/o the Brokerage

Phone _____ Fax _____

Email _____

SIGNATURES:

SIGNED AND DATED on _____, 20_____ .

Signature of Seller/Buyer	Signature of Seller/Buyer
Print Name of Seller/Buyer	Print Name of Seller/Buyer
Signature of Witness	Signature of Witness
Print Name of Witness	Print Name of Witness
Signature of Brokerage Representative	Print Name of Brokerage Representative

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